

An Act

ENROLLED SENATE
BILL NO. 1360

By: Seifried of the Senate

and

Moore of the House

An Act relating to mathematics instruction; amending 70 O.S. 2021, Section 1210.508, as last amended by Section 1 of Enrolled House Bill No. 4359 of the 2nd Session of the 60th Oklahoma Legislature, which relates to the Oklahoma School Testing Program Act; modifying date by which certain report is to be submitted; amending Sections 2, 3, 4, 5, and 8, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Sections 1210.900, 1210.901, 1210.902, 1210.903, and 1210.907), which relate to the Oklahoma Math Achievement and Proficiency Act; directing certain teachers to have access to certain training; creating the Office of Mathematics Improvement within the State Department of Education within certain time period; providing for appointment of Director; providing qualifications for and duties of Director; eliminating references to screening instrument selection requirements and usage requirements; requiring school districts to utilize the screening instrument in the 2027-2028 school year; providing a base allocation of mathematics funds to each school district; clarifying base allocation amount; removing language pertaining to distributions based on strong math plans and child count reports; removing references to a per-student allocation amount; providing purposes for the base allocation; removing language regarding spending for professional development training for teachers; eliminating references to professional development training requirements; allowing allocation of supplemental weighted funds to districts for certain intervention services; requiring the State Department of Education to promulgate rules regarding supplemental weighted

funding and expectations; providing supplemental distribution categories; describing supplemental funding uses; requiring certain student reports for funding calculations; providing documentation requirements; providing parameters for receiving supplemental funds; providing the State Department of Education the option to request additional reports; removing language regarding a list of professional development programs and stipends received for attending such programs; providing certain amount of funds for district math improvement incentives; providing incentive parameters; removing language requiring the Department to provide certain list of qualified entities; modifying school year in which certain students are to begin being screened for dyscalculia; allowing school districts to administer certain screening tool prior to certain school year; modifying date by which the State Board of Education is to develop certain policies; requiring development in certain consultation; requiring the Board to adopt a list of certain screening tools based on certain recommendations; modifying date by which public school districts and the Department are to begin reporting certain data; updating statutory language; updating statutory references; providing an effective date; and declaring an emergency.

SUBJECT: Mathematics instruction

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508, as last amended by Section 1 of Enrolled House Bill No. 4359 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

Section 1210.508. A. 1. By no later than December 31, 2016, the State Board of Education shall adopt a statewide system of student assessments in compliance with the Elementary and Secondary

Education Act of 1965 (ESEA), as reauthorized and amended by P.L. No. 114-95, also known as the Every Student Succeeds Act (ESSA).

2. The statewide student assessment system adopted by the Board pursuant to this subsection shall be aligned with the Oklahoma Academic Standards as adopted by the Board and which prepare students for college and careers.

B. 1. The Board shall issue a request for proposals for the selection of assessments to be administered to students in grades three through twelve as a part of the statewide student assessment system adopted by the Board pursuant to this section.

2. The Board shall adopt assessments from the selected proposals that were submitted pursuant to paragraph 1 of this subsection. The adopted assessments shall be administered by the Board for a period that is in coordination with the six-year subject area textbook adoption cycle unless the vendor does not fulfill the terms of the contract or fails to comply with or violates the terms of the contract. The Board shall administer the assessments beginning with the 2017-2018 school year.

C. The statewide student assessment system adopted by the Board pursuant to this section shall include assessments that:

1. Are aligned with the Oklahoma subject matter standards as adopted by the Board;

2. Provide a measure of comparability among other states;

3. Yield both norm-referenced scores and criterion-referenced scores;

4. Have a track record of statistical reliability and accuracy; and

5. For assessments administered in high school, provide a measure of future academic performance.

D. For the 2016-2017 school year, the Board shall administer assessments in:

1. English Language Arts or reading and mathematics in grades three through eight and at least once in high school, during the grade span of nine through twelve;

2. Science not less than once during each grade span of three through five, six through nine, and ten through twelve; and

3. United States History not less than once during the grade span of nine through twelve.

E. 1. Beginning with the 2017-2018 school year, the statewide student assessment system shall include assessments in:

- a. English Language Arts and mathematics in grades three through eight and at least once in high school, during the grade span of nine through twelve,
- b. science not less than once during each grade span of three through five, six through nine, and ten through twelve, and
- c. United States History, with an emphasis on civics, not less than once during the grade span of nine through twelve.

2. Beginning with the 2017-2018 school year, the statewide student assessment system may include:

- a. assessments in reading, writing, and mathematics in certain grades as determined by the Board, and
- b. contingent upon the availability of funds, an additional nationally recognized college- and career-readiness assessment or assessments as recommended by the State Department of Education, which will be administered to students in high school at no cost to the student.

F. 1. Beginning with students entering the ninth grade in the 2017-2018 school year, each student shall take the assessment or assessments included in the statewide student assessment system adopted by the Board pursuant to subsection A of this section in

order to graduate from a public high school with a standard diploma. All students shall take the assessment or assessments prior to graduation, unless otherwise exempt by law.

2. Beginning with students entering the ninth grade in the 2017-2018 school year, each student, in addition to taking the assessment or assessments included in the statewide student assessment system adopted by the Board pursuant to subsection A of this section, shall meet any other high school graduation requirements adopted by the Board pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd Session of the 55th Oklahoma Legislature in order to graduate from a public high school with a standard diploma.

3. For students who start the ninth grade prior to or during the 2016-2017 school year, school districts shall adopt a plan that establishes the assessment or assessments those students are required to take in order to graduate from a public high school with a standard diploma. The plan may also include any or all of the other high school graduation requirements adopted by the Board pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd Session of the 55th Oklahoma Legislature that those students will be required to meet in order to graduate from a public high school with a standard diploma.

4. The Board shall promulgate rules to ensure that students who transfer into ~~an Oklahoma~~ a school district in this state from out-of-state after the junior year of high school shall not be denied the opportunity to be awarded a standard diploma due to differing testing requirements.

G. In order to provide an indication of the levels of competency attained by the student in a permanent record for potential future employers and institutions of higher education, school districts shall report on the high school transcript of the student the highest-achieved score on the assessment or assessments included in the statewide student assessment system adopted by the Board pursuant to subsection A of this section and any business- and industry-recognized endorsements attained.

H. Students who do not perform at a proficiency level on assessments shall be remediated as established in the assessment

requirements adopted by the Board pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd Session of the 55th Oklahoma Legislature, subject to the availability of funding.

I. 1. All assessments required by this section shall measure academic competencies in correlation with the subject matter standards adopted by the Board pursuant to Sections 11-103.6 and 11-103.6a of this title and referred to as the Oklahoma Academic Standards. The State Board of Education shall evaluate the subject matter standards to ensure the competencies reflect high standards, are specific, well-defined, measurable, and challenging, and will prepare elementary students for next-grade-level course work and secondary students for postsecondary studies at institutions of higher education or technology center schools without the need for remediation. All subject matter standards shall reflect the goals as set forth in Section 11-103.6 of this title and of improving the state average of college entrance exam scores.

2. The State Department of Education shall annually evaluate the results of the assessments. The State Board of Education shall ensure that preliminary results for all statewide assessments are reported to districts no later than June 20 of each year and are presented in a manner that yields detailed, diagnostic information for the purpose of guiding instruction and student remediation. As improvements are made to the assessments required by this section, the Board shall seek to increase the depth of knowledge assessed for each subject. The State Board of Education shall seek to ensure that data yielded from the assessments required in this section ~~are~~ is utilized at the school district level to inform instruction, professional development, school improvement, and remediation for students.

3. The Commission for Educational Quality and Accountability shall determine the cut scores for the performance levels on all statewide assessments. The Commission shall conduct an ongoing review to compare the statewide assessment content and performance descriptors with those of other states. Upon receipt of the review, the Commission may adjust the cut scores as necessary.

4. The State Board of Education, for the purposes of conducting reliability and validity studies, monitoring contractor adherence to professionally accepted testing standards, and providing

recommendations for testing program improvement, shall retain the services of an established, independent agency or organization that is nationally recognized for its technical expertise in educational testing but is not engaged in the development of aptitude or achievement tests for elementary or secondary level grades. These national assessment experts shall annually conduct studies of the reliability and validity of the statewide assessments administered pursuant to this section. Validity studies shall include studies of decision validity and concurrent validity.

J. 1. The State Board of Education shall promulgate rules setting the assessment window dates for each statewide assessment so that the assessments are administered according to recommended testing protocols and so that the assessment results are reported back to school districts in a timely manner. The vendor shall provide a final electronic data file of all school site, school district, and state results to the State Department of Education and the Office of Educational Quality and Accountability prior to August 20 of each year. The Department shall forward the final data files for each school district and each school site in that district to the school district. The Board shall ensure the contract with the vendor includes a provision that the vendor report assessment results directly to the Office of Educational Quality and Accountability at the same time ~~it is~~ they are reported to the Board.

2. State, district, and site level results of all assessments required in this section shall be disaggregated by gender, race, ethnicity, disability status, migrant status, English proficiency, and status as economically disadvantaged, except that such disaggregation shall not be required in a case in which the number of students in a category is insufficient to yield statistically reliable information or the results would reveal personally identifiable information about an individual student. Each school site shall notify the student's parents or legal guardians of the school's performance levels in the Oklahoma School Testing Program as reported in the Oklahoma Educational Indicators Program at the end of each school year.

K. The State Board of Education shall be responsible for the field-testing and validation of the statewide assessment system required in subsection A of this section.

L. The State Board of Education shall develop, administer, and incorporate as a part of the Oklahoma School Testing Program other assessment programs or procedures including appropriate accommodations for the assessment of students with disabilities as required by the Individuals with Disabilities Education Act (IDEA), 20 U.S.C., Section 1400 et seq.

M. For purposes of developing and administering alternate assessments for students with the most significant cognitive disabilities, the State Board of Education shall not be subject to subsections D and E of Section 11-103.6a of this title.

N. By ~~December 15, 2026~~ December 15, 2028, and annually thereafter, the State Board of Education shall electronically submit a report to the Legislature containing data collected for the most recently completed school year on the number and demographics of students who were eligible for advanced mathematics courses, the number and demographics of students who were placed in advanced mathematics courses, the number and demographics of students placed in mathematics intervention courses, and the number and demographics of students not placed in advanced mathematic courses or mathematic intervention courses. The report shall include information on the type and format of advanced mathematic courses and the type and format of mathematic intervention courses.

O. The State Board of Education shall provide guidance on how to best develop programming and courses to ensure all impacted students receive rigorous, academically appropriate instruction in mathematics.

P. Beginning with the 2026-2027 school year, and for each school year thereafter, all assessments required by this section administered in grades three through eight shall be administered within the last four (4) weeks of the school year. The testing window required by this subsection shall not apply to assessments administered as part of the Oklahoma Alternate Assessment Program for students with the most significant cognitive disabilities.

SECTION 2. AMENDATORY Section 2, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.900), is amended to read as follows:

Section 1210.900. A. ~~Sections 2~~ This section through & Section 1210.907 of this act title shall be known and may be cited as the "Oklahoma Math Achievement and Proficiency Act".

B. The Legislature finds that it is essential for children enrolled in the public schools in this state to develop strong mathematical proficiency early and consistently. The Legislature further finds that clear and visible goals, assessments to determine math proficiency at each school, the use of scientifically based and researched methodologies in math instruction, along with regular and periodic measurements of school math improvement, and accountability at each level of the educational system will result in a significant increase in the number of children performing at or above grade level in mathematics.

C. The purpose of the Oklahoma Math Achievement and Proficiency Act is to ensure that student achievement in math is encouraged and progression from one grade to another is determined, in part, upon proficiency in mathematics, that school district board of education policies facilitate promotion of advanced math instruction and intervention services to address student math needs, and that each student and his or her parent or legal guardian be informed of the student's progress in mathematics.

D. Each public school district in this state shall ensure that all students receive a well-rounded education focused on building deep foundations in mathematics, reading, and writing. The State Board of Education shall encourage school districts to integrate the teaching of the other curricular areas in subject matter standards adopted by the Board with the instruction of mathematics, reading, and writing.

E. All teachers of mathematics in the public schools in this state shall have access to training in evidence-based professional development programs to deepen their content knowledge, learn specific effective and impactful teaching strategies, and develop productive dispositions toward math, and then incorporate into instruction the foundational elements of math instruction, including the development of grade-level appropriate mathematical proficiency which is a combination of real-world problem-solving skills,

procedural fluency, conceptual understanding, and productive dispositions.

F. 1. There is hereby created within the State Department of Education an Office of Mathematics Improvement, which shall be created within ninety (90) days of the effective date of this act. The Superintendent of Public Instruction shall appoint a Director of the Office of Mathematics Improvement whose exclusive focus shall be mathematics instruction for students in grades kindergarten through five. The Director shall have experience in administrative duties, in teaching mathematics in a public or private elementary school, and as an elementary mathematics specialist, coach, or administrator.

2. The Director of the Office of Mathematics Improvement shall:

- a. monitor implementation of a single statewide screening instrument, diagnostic assessments, and formative assessments for grades kindergarten through five to identify students in need of support for key numeracy concepts,
- b. recommend training and support for educators for the effective implementation and interpretation of diagnostic tools. The diagnostic tool shall be used with students who have been identified with deficiencies in mathematics based on a single statewide screening instrument, diagnostic assessments, formative assessments, benchmark assessments, teacher observation, or any combination thereof,
- c. designate a team of educators to explore the connection between difficulties with number sense and dyscalculia as well as possible effective screening instruments,
- d. commit necessary resources to understanding the needs of students struggling with number sense or dyscalculia, or both, before implementing instructional practices or assessments that could adversely affect student learning,

- e. monitor the implementation and progress of summer mathematics academies,
- f. recommend changes and improvements to any professional development providers and public schools in this state based on data collected and analyzed by the Office of Mathematics Improvement, and
- g. monitor the implementation and progress of the Oklahoma Math Achievement and Proficiency Act.

SECTION 3. AMENDATORY Section 3, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.901), is amended to read as follows:

Section 1210.901. A. To identify students who have a math deficiency including students with characteristics of dyscalculia, each student enrolled in second, third, fourth, and fifth grade in a public school in this state shall be screened at the beginning, middle, and end of each school year for math proficiency including, but not limited to, real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions. A screening instrument approved by the State Board of Education pursuant to the provisions of Section 1210.508C of this title shall be utilized for the purposes of this section. The screening instrument as described in Section 1210.508C of this title shall be a single instrument that measures both math and reading skills. In determining which screening instrument to approve, the State Board of Education shall take into consideration, at a minimum, the following factors:

~~1. The time required to conduct the screening instrument with the intention of minimizing the impact on instructional time;~~

~~2. The timeliness in reporting screening instrument results to teachers, administrators, and parents or legal guardians of students; and~~

~~3. The integration of the screening instrument into the math curriculum.~~

B. ~~Beginning School districts shall administer the screening instrument described in subsection A of this section beginning in the 2026-2027 2027-2028 school year, the State Board of Education shall approve a list of screening instruments for use at the beginning, middle, and end of the school year for monitoring progress and measurement of math proficiency as required in subsection A of this section. The screening instrument shall:~~

~~1. Assess mathematical proficiency, which is a combination of real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions for the grade level as defined by the state's subject matter standards;~~

~~2. Document the validity and reliability of each assessment;~~

~~3. Be used for identifying students who are at risk for math deficiencies and for progress monitoring throughout the school year;~~

~~4. Be used to assess students with disabilities and English language learners; and~~

~~5. Be accompanied by a data management system that provides profiles of students, class, grade level, and school building. The profiles shall identify each student's instructional point of need, competency for advanced math coursework, and math proficiency level. The State Board of Education shall also determine other comparable math assessments for diagnostic purposes to be used for students at risk of math failure.~~

C. 1. Exemptions to the screening requirements ~~required by~~ of this section may be provided to students who have documented evidence that they meet at least one of the following criteria as related to the provision of classroom instruction:

- a. the student participates in the Oklahoma Alternate Assessment Program (OAAP) and is taught using alternate methods,
- b. the student's primary expressive or receptive communication is sign language,

- c. the student's primary form of written or read text is Braille, or
- d. the student's primary expressive or receptive language is not English, the student is identified as an English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP math essential elements, proficiency in sign language and mathematical reasoning, and proficiency in Braille and mathematical concepts.

D. 1. Students who are administered a screening instrument pursuant to subsection A of this section and are found to be exceeding grade-level targets shall be provided advanced learning opportunities in mathematics approved for that student's grade level. No student who qualifies pursuant to this subsection shall be removed from the advanced learning opportunity provided to the student unless a parent or legal guardian of the student provides written consent for the student to be excluded or removed after being adequately informed that the student's placement was determined by the student's achievement on the screening instrument.

2. Students who are administered a screening instrument pursuant to subsection A of this section and are found not to be meeting grade-level targets shall be provided a program of math instruction designed to enable students to acquire the appropriate grade-level math proficiency. The program of math instruction shall be based on scientific math research and align with the subject matter standards adopted by the State Board of Education. A program of math instruction shall include:

- a. sufficient additional in-school instructional time for the acquisition of mathematical proficiency, which is a combination of real-world problem-solving skills,

procedural fluency, conceptual understanding, and productive dispositions,

- b. if necessary and if funding is available, tutorial instruction after regular school hours, on Saturdays, and during summer; however, such instruction may not be counted toward the ~~one-hundred-eighty-day~~ one-hundred-eighty-one-day or ~~one-thousand-eighty-hour~~ one-thousand-eighty-six-hour school year required in ~~Section 1-109 of Title 70 of the Oklahoma Statutes~~ this title,
- c. assessments identified for diagnostic purposes and periodic monitoring to measure the acquisition of math proficiency including, but not limited to, real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions, as identified in the student's program of math instruction,
- d. high-quality instructional materials grounded in scientifically based math research, and
- e. a means of providing every family of a student in second, third, fourth, and fifth grade access to free online evidence-based math instruction resources to support the student's math development at home.

3. A student enrolled in second, third, fourth, ~~and~~ or fifth grade who exhibits a deficiency in math at any time based on the screening instrument administered pursuant to subsection A of this section shall receive an individual math intervention plan no later than thirty (30) days after the identification of the deficiency in math. The math intervention plan shall be provided in addition to core math instruction that is provided to all students. The math intervention plan shall:

- a. describe the research-based math intervention services the student will receive to remedy the deficiency in math,

- b. provide explicit and systematic instruction in real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions, as applicable,
- c. monitor the math progress of each student's math proficiency throughout the school year and adjust instruction according to the student's needs, and
- d. continue until the student is determined to be meeting grade-level targets in math based on screening instruments administered pursuant to subsection A of this section or assessments identified for diagnostic purposes and periodic monitoring pursuant to subparagraph c of paragraph 2 of this subsection.

4. The math intervention plan for each student identified with a deficiency in math shall be developed by a student math proficiency team and shall include supplemental instructional services and supports. Each team shall be comprised of:

- a. the parent or legal guardian of the student,
- b. the teacher assigned to the student who had responsibility for math instruction in that academic year,
- c. a teacher who is responsible for math instruction and is assigned to teach in the next grade level of the student, and
- d. a teacher who specializes in math interventions, if one is available.

5. A school district shall notify the parent or legal guardian of any student in second, third, fourth, and fifth grade who exhibits a deficiency in math at any time based on the screening instrument administered pursuant to subsection A of this section. The notification shall occur no later than thirty (30) days after the identification of the deficiency in math.

SECTION 4. AMENDATORY Section 4, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.902), is amended to read as follows:

Section 1210.902. A. Contingent on the provision of appropriated funds designated for the Oklahoma Math Achievement and Proficiency Act, ~~public each school districts may be allocated monies~~ district shall receive a base mathematics allocation calculated on a per-student basis for each enrolled second-, third-, fourth-, and fifth-grade student as reported in the October 1 enrollment counts of the current school year ~~who is found to be in need of remediation or intensive intervention services in mathematics.~~ The State Board of Education shall allocate not less than forty percent (40%) of funds appropriated for the purposes of this section to support the base mathematics allocation. The base mathematics allocation shall be distributed to each public school district upon approval of the strong math plan for the school district by the State Board of Education and the submittal of a child-count report to the State Department of Education that details the number of students identified as needing remediation or intensive intervention services in mathematics. To determine a per-student allocation amount, the total amount of funds available for allocation each year shall be divided by the total number of students in the state identified as in need of remediation or intensive intervention services in mathematics as provided for in Section 3 of this act. Each public school district shall be allocated an amount equal to the per-student allocation amount multiplied by the number of identified students enrolled in the school district support the prevention of math deficiencies and the implementation of strong core math instruction within Tier 1 of a multi-tiered system of supports (MTSS) framework including, but not limited to:

1. Evidence-based core math instruction and high-quality instructional materials grounded in scientifically based math research;

2. Universal screenings and diagnostic assessments necessary to identify students at risk for math deficiencies;

3. Progress monitoring and data use to inform instructional decisions;

4. Family math instruction resources and engagement activities aligned with classroom instruction; and

5. Professional development and instructional coaching necessary to implement the district strong math plan.

B. ~~Public~~ 1. In addition to the base mathematics allocation provided pursuant to subsection A of this section, school districts receiving more than Two Thousand Five Hundred Dollars (\$2,500.00) pursuant to subsection A of this section shall spend no less than ten percent (10%) to provide professional development for teachers. The professional development shall include training in scientifically based math research including how students learn mathematical concepts; training in providing explicit and systematic instruction in real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions; implementing math strategies that research has shown to be successful in improving math proficiency among students with math difficulties; courses leading to a micro-credential in mathematics; and instructional materials required for implementation shall receive supplemental weighted funding for students identified through screening and progress-monitoring data as requiring additional math intervention services within an MTSS framework. The State Board of Education shall allocate not less than thirty percent (30%) of funds appropriated for the purposes of this section to support supplemental weighted funding and shall promulgate rules establishing the methodology for calculating weights, documentation requirements, and procedures for verifying intervention participation. Supplemental weighted funding shall support intervention services beyond Tier 1 core instruction and shall be distributed according to the following categories:

- a. Tier 2 supplemental intervention weight: students identified as requiring targeted math intervention beyond Tier 1 core instruction shall generate supplemental funding to support additional instructional time, reduced group size, and evidence-based intervention, and
- b. Tier 3 intensive intervention weight: students identified as demonstrating a significant math

deficiency requiring intensive, individualized, or highly targeted intervention shall generate supplemental funding reflecting the increased instructional intensity required at the Tier 3 level.

2. Supplemental weighted funding received pursuant to this subsection shall be used exclusively for intervention services beyond Tier 1 core instruction including:

- a. additional instructional time devoted to math intervention,
- b. reduced instructional group sizes necessary to deliver intensive instruction,
- c. specialized instructional materials and intervention programs aligned with scientifically based math research,
- d. compensation for educators delivering intervention services, and
- e. professional development necessary to ensure educators providing intervention services have extensive training in scientifically based math research including how students learn mathematical concepts; training in providing explicit and systematic instruction in real-world problem-solving skills, procedural fluency, conceptual understanding, and productive dispositions; implementing math strategies that research has shown to be successful in improving math proficiency among students with math difficulties; and courses leading to a micro-credential in mathematics.

3. Students shall be counted for purposes of supplemental weighted funding only when the school district has documented and electronically reported to the State Department of Education that the student is receiving intervention services consistent with the level of instructional intensity required at the applicable tier.

4. School districts shall maintain documentation demonstrating:

- a. identification of the student through an approved screening instrument and supporting diagnostic or progress-monitoring data,
- b. implementation of an intervention plan specifying the instructional approach, frequency, duration, and group size of intervention services, and
- c. ongoing progress monitoring used to determine the effectiveness of the intervention and inform instructional adjustments.

5. Students shall not generate supplemental weighted funding unless intervention services are provided beyond Tier 1 core instruction. The State Department of Education may review intervention documentation and program implementation to verify eligibility for supplemental weighted funding allocated pursuant to this section.

6. The State Board of Education shall promulgate rules establishing reasonable expectations for the proportion of students receiving supplemental and intensive services within an MTSS framework.

7. When the reported percentage of students receiving Tier 2 or Tier 3 intervention services significantly exceeds expected ranges, the State Department of Education may require additional documentation or provide technical assistance to ensure intervention services are implemented within the instructional intensity required at each tier.

~~C. The State Department of Education shall approve and publish a list of professional development programs that are evidence based and directly address the cognitive science of how students learn mathematics for which districts are permitted to use the funds received pursuant to this section.~~

~~D. If a teacher attends and completes a professional development institute in elementary math approved by the Commission for Educational Quality and Accountability during the summer or when school is not in session, the teacher may receive a stipend equal to~~

~~the amount of the cost for a substitute teacher, based on the amount of funds allocated~~ 1. To encourage continuous improvement in student math outcomes and to support the sustainability of effective intervention services, the State Board of Education shall allocate up to thirty percent (30%) of funds appropriated for the purposes of this section for math improvement incentives and shall promulgate rules establishing criteria for determining eligibility for such incentives, which shall include demonstration of measurable improvement in student math performance.

2. Math improvement incentives may include recognition of:

- a. students who demonstrate sufficient progress to exit Tier 3 intensive intervention,
- b. students who demonstrate sufficient progress to exit Tier 2 supplemental intervention, and
- c. school districts or school sites that demonstrate measurable reductions in the number or percentage of students requiring supplemental or intensive intervention.

SECTION 5. AMENDATORY Section 5, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.903), is amended to read as follows:

Section 1210.903. A. If a teacher determines that a student in second, third, fourth, and fifth grade is performing above grade level in mathematics by the start of the second quarter of the school year, the parent or legal guardian of the student shall be notified of:

- 1. The math proficiency level of the student;
- 2. The program of advanced math instruction available for the student; and
- 3. The potential for the student to participate in a summer academy or other program designed to assist the student in excelling in mathematics.

B. If a teacher determines that a student in second, third, fourth, ~~and~~ or fifth grade is not performing at grade level in mathematics by the start of the second quarter of the school year, the parent or legal guardian of the student shall be notified of:

1. The math proficiency level of the student;

2. The program of math instruction for the student as required pursuant to ~~this act~~ the Oklahoma Math Achievement and Proficiency Act; and

3. The potential need for the student to participate in a summer academy or other program designed to assist the student in attaining grade-level math proficiency.

C. A teacher who determines a student in second, third, fourth, ~~and~~ or fifth grade is exceeding or not meeting grade-level targets for mathematics may, after consultation with the parent or legal guardian of the student, recommend that the student participate in and complete a summer academy or other program.

D. Summer academy programs shall be designed to ensure that participating students successfully complete an advanced mathematical program or grade-level competencies in mathematics to enhance next-grade readiness. A summer academy math program shall be a program that incorporates the content of a scientifically research-based professional development program administered by the Commission for Educational Quality and Accountability or a scientifically research-based math program administered by the State Board of Education which is taught by teachers who have successfully completed professional development in the math program. All summer academy programs shall consist of a minimum of three (3) consecutive days. ~~The State Department of Education shall provide a list of qualified entities for providing the summer academy programs to all schools by April 1, 2026.~~

E. School districts may approve an option for students who are unable to attend a summer academy. The optional program may include, but not be limited to, an approved private provider of instruction, approved computer- or Internet-based instruction, or an approved program of math instruction monitored by the parent or legal guardian of the student. Public school districts shall not be

required to pay for the optional program but shall clearly communicate to the parent or legal guardian the expectations of the program and any costs that may be involved.

F. Subject to the availability of funds, beginning one (1) year after implementation of this section, the requirements of subsection C of this section may be expanded to apply to students in first grade. Each year thereafter, the requirements may be expanded by one grade level until the requirements apply to kindergarten students through fifth-grade students. Summer academy programs shall be designed for each grade level. Nothing in this section shall prevent the State Board of Education or a school district board of education from utilizing private, local, or federal funds to implement the provisions of this section.

G. The State Board of Education shall promulgate rules to implement the provisions of this section, which shall include requirements for instructional time for summer academy programs, teacher qualifications, and evaluation of student achievement as a result of summer academy programs or other optional programs.

SECTION 6. AMENDATORY Section 8, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.907), is amended to read as follows:

Section 1210.907. A. Beginning with the ~~2026-2027~~ 2027-2028 school year and for each school year thereafter, any student enrolled in second, third, fourth, and fifth grade in a public school in this state who is assessed through the Oklahoma Math Achievement and Proficiency Act pursuant to Section ~~3~~ 1210.901 of this ~~act~~ title, and who is not meeting grade-level targets in mathematics after the beginning-of-the-year screening instrument, shall be screened for dyscalculia. Screening also may be requested for a student by his or her parent or legal guardian, teacher, or counselor. A student who is identified with characteristics of dyscalculia shall not be required to be rescreened unless requested by his or her parent or legal guardian. Nothing in this section shall preclude a school district from administering a dyscalculia screening tool to identify, refer, evaluate, or provide appropriate services to any student suspected of having dyscalculia or another math-related disorder prior to the 2027-2028 school year.

B. No later than ~~December 31, 2025~~ February 28, 2027, the State Board of Education, in consultation with the Office of Mathematics Improvement within the State Department of Education, shall develop policies for dyscalculia screening required pursuant to this section and shall include, but not be limited to:

1. The definition and characteristics of dyscalculia and related disorders;

2. The process for referring students in grades two through five for screening;

3. A process for providing notification to parents or legal guardians of the use of a qualified ~~dyscalculia screening~~ dyscalculia screening tool and notification of the results of the screening;

4. A process for providing the parents or legal guardians of students screened for dyscalculia with information and resource material regarding dyscalculia;

5. A process for monitoring the student's progress after the positive identification of characteristics of dyscalculia or other math-related disorders; and

6. Requirements and qualifications for screeners that demonstrate an understanding of and training to administer the screening instrument.

C. The Board shall adopt a list of approved qualified dyscalculia screening tools based on recommendations from the Office of Mathematics Improvement within the State Department of Education that address developmentally appropriate components.

D. Screening shall be conducted in accordance with the policies developed by the State Board of Education pursuant to subsection B of this section and the guidance within the dyslexia and dysgraphia handbook developed pursuant to Section 1210.517 of ~~Title 70 of the Oklahoma Statutes~~ this title including policies and information developed relating to universal screening of students for characteristics of dyscalculia.

E. Beginning ~~June 30, 2026~~ June 30, 2028, and June 30 each year thereafter, public school districts shall provide the following data to the State Department of Education:

1. The number of students by grade level in grades two through five who were screened for dyscalculia in a school year;

2. The number of students by grade level in grades two through five who were newly identified as having characteristics of dyscalculia in a school year;

3. The process or tools used to evaluate student progress;

4. The number of trained school system personnel or licensed professionals used to administer the qualified dyscalculia screening tool;

5. The number of students in grades two through five who were participating in interventions within the school setting and the number of students participating in interventions outside the school setting; and

6. The programs used by districts for intervention within the school setting.

F. The State Department of Education shall designate personnel to provide technical assistance to implement the provisions of ~~this act~~ the Oklahoma Math Achievement and Proficiency Act.

G. By ~~December 31, 2026~~ December 31, 2028, and by December 31 each year thereafter, the State Department of Education shall electronically provide a report containing all of the data provided pursuant to subsection E of this section to the Governor and Legislature and make the report available on the Department's website.

H. As funds are available, ~~beginning with the 2026-2027 school year,~~ the Department shall provide training on the best practices for screening for dyscalculia.

I. The State Board of Education may promulgate rules to implement the provisions of this section.

SECTION 7. This act shall become effective July 1, 2026.

SECTION 8. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____